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LINE: 7

25-CIV-08949

SARISHAMA MAHARAJ VS. HYUNDAI MOTOR AMERICA

SARISHAMA MAHARAJ
HYUNDAI MOTOR AMERICA

EMILY MAYERS
ALI AMERIPOUR

DEFENDANT HYUNDAI MOTOR AMERICA’S MOTION TO COMPEL BINDING ARBITRATION

TENTATIVE RULING:

For the following reasons, Defendant Hyundai Motor America’s Motion to Compel Binding Arbitration is **GRANTED**.

Defendant Hyundai Motor America moves to compel arbitration under the arbitration provision in the 2022 Owner’s Handbook & Warranty Information (the “Warranty”), not under the Retail Installment Sales Contract (“RISC”).

Code of Civil Procedure section 1281.2 requires the court to order arbitration if it determines that an agreement to arbitrate the controversy exists, unless the moving party has waived the right to compel arbitration, grounds exist for revocation of the agreement, or litigation with a third party creates a risk of conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) Arbitration is a matter of contract; a party may not be compelled to arbitrate a dispute the party did not agree to arbitrate. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236; see also *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.)

The party seeking arbitration bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn., supra*, 55 Cal.4th at p. 236; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party satisfies its initial burden by producing a copy of the arbitration agreement or by stating its provisions verbatim. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166; Cal. Rules of Court, rule 3.1330.) If the opposing party does not dispute the existence or authenticity of the agreement, the moving party need not present additional evidence to authenticate the agreement. (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Kostandian v. American Honda Motor Co., Inc. (2026) 120 Cal.App.5th 872 is particularly instructive. There, the Court of Appeal held that the manufacturer met its initial burden to establish a warranty-booklet arbitration agreement where it produced the booklet containing the arbitration provision, recited the relevant terms in its moving papers, and the plaintiff did not dispute the existence of an arbitration agreement in the warranty booklet. (*Id.* at pp. 884-885; see also *Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Here, the arbitration agreement under which Defendant seeks to compel arbitration is contained in the Warranty. (Ameripour Decl., ¶ 4, Exh. 2.) Defendant produced a copy of the Warranty and set forth the operative arbitration language under the heading “BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY,” which provides:

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.

(Id.)

Plaintiff does not dispute the existence or authenticity of the arbitration agreement contained in the Warranty, does not argue that Plaintiff opted out of the Warranty arbitration provision, and does not identify any claim that falls outside the Warranty provision or within the Magnuson-Moss Warranty Act exclusion. Instead, Plaintiff's opposition focuses on the RISC between Plaintiff and non-party Capitol Hyundai. (Opp. at p. 1:4-6.) Because Defendant seeks to compel arbitration under its own Warranty provision, Plaintiff's arguments regarding equitable estoppel and third-party beneficiary status under the RISC do not defeat the Motion.

The Motion is therefore **GRANTED**. This action is **STAYED** pending completion of arbitration. (Code Civ. Proc., § 1281.4.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 8

25-CIV-09560

PAULA NIEVES VS. MARK GILLMAN, ET AL

PAULA NIEVES
MARK GILLMAN

LOUIS S. ABRONSON
ROWENA P. LIZIN

PETITIONER PAULA NIEVES' PETITION FOR ORDER RELIEVING PETITIONER FROM PROVISIONS OF GOVERNMENT CODE SECTION 945.4 OR OTHERWISE ACCEPTING HER GOVERNMENT CLAIM AS TIMELY

TENTATIVE RULING:

Plaintiff Paula Nieves's petition for relief under Government Code section 946.6 is **GRANTED**.

Defendant City of Redwood City's request for judicial notice is **GRANTED** as to the existence, filing, and legal effect of the court records and public records submitted, but not for the truth of any reasonably disputed factual matter asserted in those records.

Plaintiff alleges she was injured on January 23, 2025, near 1601-1607 Woodside Road in Redwood City. Because the claim concerns personal injury, Plaintiff was required to present a claim to the appropriate public entity within six months after accrual. (Gov. Code, § 911.2, subd. (a).) Plaintiff did not present a claim to the City of Redwood City within that six-month period.

Plaintiff did, however, timely present a claim to the City of San Mateo on or about June 27, 2025. On October 1, 2025, the City of San Mateo rejected the claim because the subject property was not located within that city. On October 7, 2025, Plaintiff submitted a claim and application for leave to present a late claim to the City of Redwood City. Redwood City denied the late-claim application on October 20, 2025.

The late-claim application was made within one year after accrual and within a reasonable time after Plaintiff learned that the claim had been presented to the wrong public entity. (Gov. Code, § 911.4, subd. (b).) The petition for court relief was also timely, assuming the docket confirms it was filed within six months after Redwood City denied the late-claim application. (Gov. Code, § 946.6, subd. (b).)

The Court finds that Plaintiff's failure to timely present the claim to Redwood City resulted from mistake, inadvertence, or excusable neglect. Plaintiff's case manager mistakenly submitted the claim to the City of San Mateo because he confused the San Mateo County forum with the proper public entity for claim presentation. The error is not ideal, particularly because Plaintiff's intake materials and the claim form identified the incident location as Redwood City. However, the record shows that Plaintiff's counsel timely attempted to present a claim within the original claim period, promptly corrected the error after receiving the City of San Mateo's rejection, and timely sought late-claim relief from Redwood City. Under the policy favoring trial on the merits and the standards stated in *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, the Court does not find the neglect clearly inexcusable.

Redwood City has not established that it would be prejudiced in defending the claim if relief is granted. Accordingly, Plaintiff is relieved from the requirements of Government Code section 945.4 as to her claim